

Civil Administration

Plaintiff was digging a trench alongside the Regional Rail tracks. Mr. Hernandez, in his deposition testimony, stated he was doing trenching work on the SEPTA Regional Rail lines for two (2) years prior to his accident. During which time, he was an ICC employee. Plaintiff concedes and agrees that he was an employee of Minority Services at the time of the accident. Shortly before the accident, ICC switched the workers over to Minority Services employees; the same work was being done for SEPTA. ICC had a contract with SEPTA for trenching work at the accident site. ICC subcontracted the trenching work to Minority Services, Inc. and the supervision of the work was the same. Both, ICC and Minority Services are owned by Steve Hare.

Mr. Hare testified the Plaintiff, does work for both ICC and Minority and the workers are interchangeable. In fact, plaintiff's case is built on ICC not supervising Hernandez on the job site; plaintiff's own theory makes ICC the de facto employer. ICC therefore, qualifies as Plaintiff's statutory employer defense.

The testimony in this case is replete with the fact that the subject train blew its horn and flashed its lights, and that the ICC watchman on duty sounded an air horn to warn the workers, including Plaintiff, of the approaching train. Mr. Hernandez, in his deposition testimony, admitted he was aware of the instruction to look both ways before ever attempting to cross train tracks.

Plaintiff was on notice of the approaching train, yet he alone left a place of safety, and stepped in front a moving train. There were eleven other workers present, and all remained in the trench as the train approached, all testified, unequivocally, in their respective depositions, they heard the warnings, the watchman's airhorn, the

train's horn and saw the train's lights flashing. In addition, the video of the incident, supports same.

The simple fact is that Plaintiff would not have been hit if he had simply stayed where he was, which was on the opposite side of the trench, against a bridge abutting the tracks. Instead, Plaintiff ignored multiple warnings, stepped away from the abutting bridge, into the trench, and then climbed out of the trench into the train's path.

II. LIABILITY:

William H. Daley, III, Mechanical Engineer, had the opportunity to review all of the testimony in this matter, as well as perform an on-site inspection. Mr. Daley points out that Mr. Silva's analysis is flawed as based on the video of the incident, Mr. Hernandez was not in the trench, but rather walked from a position of safety on the wall side of the trench to a foul position between the trench and the train. Mr. Daley opines that this accident was the result of Mr. Hernandez's own negligence and failure to properly abide by the safety procedures set in place.

Additionally, he opines that based on the trench location, line of sight, train approach speed, and the watchman response time, TAW (Train Approach Warning) was appropriate at the time of this incident.

David W. Brookings, P.E., also had the opportunity to review all of the testimony in this matter, perform an evaluation of the tracks, and offer his opinion as to causation of the accident. Mr. Brookings also opined to a reasonable degree of engineering certainty that the Train Approach Warning was the property safety procedure to be utilized at the time of the accident. He notes that the TAW was used safely and without issue, and with Mr.

Hernandez, approximately **540 times** at the same location in the three weeks prior without any injuries or issues. Mr. Brookings notes that Mr. Hernandez was in a Place of Safety when warned of the train's approach, and inexplicably by his own actions, left a Place of Safety and placed himself in fouled the track. Lastly, Mr. Brookings opines that this accident was the result of Mr. Hernandez's actions, and not the negligence of any other individual or organization.

This accident was certainly unfortunate, but the fact remains that, had Plaintiff followed his training, it would not have occurred.

III. INJURIES:

ICC has retained several damage experts: Kathleen Hartman (Life Care Plan), Dr. Gene Salkind (medical expert), Robert D. Cipko, Ph.D. (Vocational expert), Thomas Sacchetti, Ph.D. (Neuropsychological expert), Robert Diecidue, DMD (Dental expert) and Gary Barach, CPA (Economic expert). Reports attached. However, in short:

Dr. Sacchetti, Neuropsychologist: According to the records, Dr. Sacchetti felt that at worst he suffered a mild traumatic brain injury/concussion. He also suffered minimally depressed skull and fracture of the skulls. Dr. Sacchetti felt that Plaintiff put suboptimal efforts into the testing. His IQ was in the 5th percentile including memories, speed, and complex problem solving. This level of impairment is not consistent with a mild concussion and cannot be attributed to the accident. He opines to a reasonable degree of medical certainty that Plaintiff does not have any organically based neurocognitive deficits related to the accident of 3/12/18.

Dr. Salkind, Neurologist: He opined that Plaintiff sustained a mild traumatic brain injury, a skull fracture, sternal fractures, a retrosternal hematoma, nasal bone fractures, cervical spine injury, bilateral lung contusions, lacerations of the scalp, jaw, tort, left side hearing loss, severe sepsis, pneumonia, anxiety and insomnia related to the accident. He did note all treatment was reasonable and necessary. In his interview, he found evidence of symptom magnification and embellishment, and Dr. Salkind opined that Plaintiff did not require any additional treatment. He also opined Plaintiff can return to light work.

IV. ECONOMIC DAMAGES:

Dr. Cipko, Vocational Specialist: After reviewing the medical records and deposition transcripts, he opined that Plaintiff suffered a wage loss from the date of the incident until he was permitted to return to work with restrictions 8 months later. He opined he would have no ongoing or future loss of wages. He places an average annual income for Plaintiff at \$37,236. Cipko relied upon the November 6, 2018 of Dr. Diamond which stated that Mr. Hernandez could return to his previous work with restrictions. Also, on January 7, 2019, Dr. Schmidt opined that Mr. Hernandez was not restricted in his activities or employment.

Kathleen Hartmann, Life Care Plan: Ms. Hartmann opines Plaintiff's lifetime medical cost in Puerto Rico would be approximately \$35,000, and in PA would be \$48,000. These numbers are significantly less than Plaintiff's report.

V. EXHIBITS TO PRE-TRIAL MEMORANDUM:

A) William Daley, III Report

- B) Thomas Swirsky-Sacchetti, Ph.D.
- C) Gene Z. Salkind, M.D.
- D) Robert D. Cipko, M.D.
- E) Kathleen Hartmann, RN, CLCP, CCM

VI. SUMMARY:

ICC has no responsibility for this incident. See Defendant's motion for summary judgment for further argument. This accident is the result of Plaintiff's own negligence.

VII. ANTICIPATED TRIAL LENGTH:

Defendant, ICC anticipates the trial in this case will be approximately 10-21 days due to the number of experts and lay person witnesses (12 co-workers on the scene).

VIII. SETTLEMENT STATUS:

Plaintiff and Defendant, ICC have not engaged in any significant settlement discussions. Plaintiff has demanded, ICC's Policy Limits of \$11 Million.

IX. DEFENDANT, ICC WITNESS LIST:

- 1) Jesse Hernandez (Plaintiff) (as on cross);
- 2) Nydia Vasquez (as on cross);
- 3) William "Steve" Hare;
- 4) Anthony Ocasio (plaintiff's co-worker);
- 5) Charles Rhoads (plaintiff's co-worker);
- 6) Dennis Coleman (plaintiff's co-worker);

- 7) Edwin Quay (plaintiff's co-worker);
- 8) Ernesto Cintron (plaintiff's co-worker);
- 9) James Ridgway (plaintiff's co-worker);
- 10) Jermie Ortiz (plaintiff's co-worker);
- 11) Jonathan Watts (plaintiff's co-worker);
- 12) Jorge Lopez (plaintiff's co-worker);
- 13) Juan Vega (plaintiff's co-worker);
- 14) Michael Monastero (plaintiff's co-worker);
- 15) Sammy Sosa (plaintiff's co-worker);
- 16) William Boyer (plaintiff's co-worker);
- 17) Gary S. Barach, CPA, CFE, CFF, CVA(expert), Barach Consulting Group, LLC, 220 West Gay Street, West Chester, PA 19380;
- 18) Kathleen Hartmann, RN, CLCP, CCM (expert), PVG Verity Group, f/k/a PVG Solutions, 2 Bala Plaza, Suite 300, Bala Cynwyd, PA 19004;
- 19) William H. Daley, III, (expert) CED Technologies, Inc., 88 Trap Falls Road, Shelton, CT 06484;
- 20) David W. Brookings, P.E. (expert), Brookings & Associates, LLC, 6517 Ridge Road, Parkville, MO 64152;
- 21) Gene Z. Salkind, MD (expert), 727 Welsh Road, Suite 108, Huntingdon Valley, PA 19006;
- 22) Thomas Swirsky-Sacchetti, Ph.D., (expert), Diversified Psychological Resources, PC, 230 South Broad Street, Suite 1005, Philadelphia, PA 19102;
- 23) Robert D. Cipko, PhD., CRC, ABVE, (expert), Rehabilitation Planning, Inc., Plymouth Greene Office Campus, B-5, 1000 Germantown Pike, Plymouth Meeting, PA 19462;
- 24) Robert J. Diecidue, DMD, MD, PhD, MBA, MSPH, (expert), Jefferson Oral and Maxillofacial Surgery, 909 Walnut Street, 3rd Floor, Philadelphia, PA 19107;

- 25) Dennis Rimbaut (Philadelphia Fire Dept., EMS);
- 26) Records Custodian, Penn Presbyterian Medical Center;
- 27) Records Custodian, Behavioral Medicine of Pennsylvania;
- 28) Medical Billing Custodian of any and all medical providers;
- 29) Records Custodian of any and all medical providers;
- 30) Plaintiffs' and Defendant, SEPTA's witnesses who have been deposed (as on cross);
- 31) Plaintiff's and Defendant, SEPTA's expert witnesses (as on cross).

Defendant, ICC reserves the right to call any and all witnesses identified by other parties in connection with this litigation. Defendant, also reserves the right to call Records Custodians for all of Plaintiff's healthcare providers, including physicians, hospitals, physical therapists and pharmacies.

X. DEFENDANT'S TRIAL EXHIBIT LIST:

A. SEPTA Records:

1. SEPTA System Safety Executive Summary Report, Modified and Re-Issued March 4, 2019;
2. SEPTA System Safety Executive Summary Report, March 12, 2018;
3. William Boyer 3/23/2018 Memorandum;
4. SEPTA-ICC Contract;
5. SEPTA Technical Trenching Requirements;
6. ICC-MSI Subcontract;
7. Dennis Coleman accident report;
8. March 2019 Memo from Jim Fox re Re-Issued System Safety Report;

9. Police Report;
10. Police Complaint Report;
11. Pre-Job Briefing document;
12. Safety Corrective Action Plan following System Safety report;
13. SEPTA video of accident from forward facing train-mounted camera;
14. Scene photographs;
15. SEPTA Employee Injury Report Form;
16. SEPTA internal emails;
17. SEPTA Roadway Worker Protection (RWP) Manual;
18. SEPTA Supervisor Special Report;
19. Worker statements;
20. Simulation Prepared by William Daley

B. Experts:

21. CV, Dr. Gene Z. Salkind;
22. Narrative Report of Dr. Salkind;
23. Documents referred to or relied on by Dr. Salkind;
24. CV, Dr. Thomas Swirsky-Sacchetti;
25. Narrative Report of Dr. Swirsky-Sacchetti;
26. Documents referred to or relied on by Dr. Swirsky-Sacchetti;
27. CV, Dr. Robert D. Cipko;
28. Narrative Report of Dr. Cipko;
29. Documents referred to or relied on by Dr. Cipko;
30. CV, Dr. Robert J. Diecidue;

31. Narrative Report of Dr. Diecidue;
32. Documents referred to or relied on by Dr. Diecidue;
33. CV, Gary S. Barach, CPA, CFE, CFF, CVA
34. Expert Report of Gary S. Barach;
35. Documents referred to or relied on by Gary S. Barach;
36. CV, Kathleen Hartmann, RN, CLCP, CCM;
37. Expert Report of Kathleen Hartmann, RN, CLCP, CCM;
38. Documents referred to or relied on by Ms. Hartmann;
39. CV, William H. Daley, III;
40. Expert Report of William H. Daley, III;
41. Documents referred to or relied on by Mr. Daley;
42. CV, David W. Brookings;
43. Expert Report of David W. Brookings;
44. Documents referred to or relied on by Mr. Brookings;
45. All Plaintiff's and Co-Defendants' expert reports;
46. All Plaintiff's and Co-Defendants' experts' CVs;
47. All documents referred to or relied upon by Plaintiff's and Co-Defendants' experts;

C. Depositions:

48. Deposition/Videotaped Deposition, Jesse Hernandez, and all exhibits;
49. Deposition/Videotaped Deposition, Nydia Vasquez, and all exhibits;
50. Deposition/Videotaped Deposition, William "Steve" Hare, and all exhibits;
51. Deposition/Videotaped Deposition, Anthony Ocasio, and all exhibits;

- 52. Deposition/Videotaped Deposition, Charles Rhoads, and all exhibits;
- 53. Deposition/Videotaped Deposition, Dennis Coleman, and all exhibits;
- 54. Deposition/Videotaped Deposition, Edwin Quay, and all exhibits;
- 55. Deposition/Videotaped Deposition, Ernesto Cintron, and all exhibits;
- 56. Deposition/Videotaped Deposition, James Ridgway, and all exhibits;
- 57. Deposition/Videotaped Deposition, Jermie Ortiz, and all exhibits;
- 58. Deposition/Videotaped Deposition, Jonathan Watts, and all exhibits;
- 59. Deposition/Videotaped Deposition, Jorge Lopez, and all exhibits;
- 60. Deposition/Videotaped Deposition, Juan Vega, and all exhibits;
- 61. Deposition/Videotaped Deposition, Michael Monastero, and all exhibits;
- 62. Deposition/Videotaped Deposition, Sammy Sosa, and all exhibits;
- 63. Deposition/Videotaped Deposition, William Boyer, and all exhibits;

D. Medical Records:

- 64. Records, (subpoenaed) PA Bureau of Workers Compensation;
- 65. Records, (subpoenaed) Penn Care At Home;
- 66. Records, (subpoenaed) Pond Lehigh;
- 67. Records, (subpoenaed) Premier Physical Therapy;
- 68. Records, (subpoenaed) Behavioral Medicine of Pennsylvania;
- 69. Records, (subpoenaed) Dr. Steven Diamond;
- 70. Records, (subpoenaed) Minority Services;
- 71. Records, (subpoenaed) Neuromuscular Evaluations;
- 72. Records, (subpoenaed) Bingaman Hess;

- 73. Records, (subpoenaed) Vital Support Home Health Care;
- 74. Records, (subpoenaed) Penn Presbyterian Medical Center;
- 75. Records, (subpoenaed) Philadelphia Police Department;
- 76. Records, (subpoenaed) Philadelphia Fire Marshall – EMS Division;
- 77. Records, (subpoenaed) SEPTA;
- 78. Records, (subpoenaed) Erie Insurance Company – Workers Compensation Claim;
- 79. Records, Philadelphia Fire Department;
- 80. Records, Behavioral Medicine of Pennsylvania;
- 81. Radiographs/films/reports;
- 82. Medical Billing Custodian of all medical providers;

E. Economic Records:

- 83. Tax records;
- 84. Earnings records;

F. Pleadings & Discovery:

- 85. All documents produced by any and all parties;
- 86. All documents produced by any and all third-parties;
- 87. All discovery exchanged between the parties;
- 88. All interrogatories addressed to Plaintiff;
- 89. All answers to interrogatories produced by Plaintiff;
- 90. All requests for production addressed to Plaintiff;
- 91. All responses to requests for production produced by Plaintiff;
- 92. All documents produced by Plaintiff;

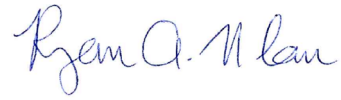
- 93. All interrogatories addressed to any and all Defendants;
- 94. All responses to interrogatories produced by any and all Defendants;
- 95. All requests for production addressed to any and all Defendants;
- 96. All responses to requests for production produced by any and all Defendants;
- 97. All requests for admission;
- 98. All responses to requests for admission;
- 99. Documents produced by Plaintiff in discovery;
- 100. Documents produced by any and all Defendants in discovery;

G. Miscellaneous Records:

- 101. All medical records;
- 102. Statements;
- 103. Agreements;
- 104. Contracts;
- 105. Policies;
- 106. Notes;
- 107. Letters;
- 108. Emails;
- 109. Reports;
- 110. Drawings;
- 111. Manuals;
- 112. Plans;
- 113. Daily Reports;
- 114. Accident Reports;

115. Memoranda;
116. Diagrams;
117. Sketches;
118. Illustrations;
119. Receipts;
120. Bills;
121. Invoices;
122. Work orders;
123. Blow ups and enlargements of various medical records;
124. Blow ups of photographs;
125. Blow ups of still shots from SEPTA video of accident from forward facing train-mounted camera;
126. United States Department of Health & Human Services, Vital Statistics of the United States, Life Tables;
127. Wage, benefits, and lost earnings documentation;
128. Employment records;
129. All pleadings;
130. All documents exchanged between the parties;
131. Any and all relevant documents discovered between now and the end of trial;
132. Documents, presentations, PowerPoints, or such exhibits as are used at trial.

Respectfully submitted,
Law Offices of Donna DiPietro



BY: _____

Ryan Nolan, Esquire
Attorneys for Defendant,
Independence Construction Corp.,
improperly named as Independence Tree
Service, LLC



BY: _____

William P. Barrett, Esquire
Attorneys for Defendant,
Independence Construction Corp.,
improperly named as Independence Tree
Service, LLC

Dated: September 15, 2022

LAW OFFICES OF DONNA DiPIETRO

By: William P. Barrett, Esquire
Ryan A. Nolan, Esquire
Attorney I.D. No. 48949/311229
1601 Market Street, Suite 1040
Philadelphia, PA 19103
(215)762-0400
barretw@nationwide.com
nolanr5@nationwide.com

*Attorneys for Defendant,
Independence Construction Corp.,
improperly named as Independence Tree
Service, LLC*

JESSE HERNANDEZ,	:	
	:	
v.	:	COURT OF COMMON PLEAS
	:	PHILADELPHIA COUNTY, PA
	:	
INDEPENDENCE CONSTRUCTION	:	DECEMBER TERM 2018
CORP. improperly named as	:	COURT NO. 02689
INDEPENDENCE TREE SERVICE, LLC,	:	
SOUTHEASTERN PENNSYLVANIA	:	
TRANSPORTATION AUTHORITY,	:	
And NATIONAL RAILROAD	:	
PASSENGER CORPORATION	:	
D/B/A AMTRAK	:	
	:	

CERTIFICATE OF SERVICE

I hereby certify that service of a true and correct copy of the foregoing Pre-Trial Memorandum was made on the 15th day of September, 2022, via electronic filing system of The Philadelphia County Court of Common Pleas to all counsel of record.

Robert Mongeluzzi
Jeffrey P. Goodman
Samuel B. Dordick
Saltz Mongeluzzi Barret & Bendesky, P.C.
1650 Market Street, 52ⁿd Floor
Philadelphia, PA 19103
Attorneys for Plaintiff